



DEPARTMENT OF THE ARMY
U.S. ARMY CORPS OF ENGINEERS, GALVESTON DISTRICT
5151 FLYNN PARKWAY, SUITE 306
CORPUS CHRISTI, TEXAS 78411

CESWG - RDS

29 May 2026

MEMORANDUM FOR RECORD

SUBJECT: US Army Corps of Engineers (Corps) Pre-2015 Regulatory Regime
Approved Jurisdictional Determination in Light of *Sackett v. EPA*, 143 S. Ct. 1322
(2023),¹SWG-2025-00571²

BACKGROUND. An Approved Jurisdictional Determination (AJD) is a Corps document stating the presence or absence of waters of the United States on a parcel or a written statement and map identifying the limits of waters of the United States on a parcel. AJDs are clearly designated appealable actions and will include a basis of JD with the document.³ AJDs are case-specific and are typically made in response to a request. AJDs are valid for a period of five years unless new information warrants revision of the determination before the expiration date or a District Engineer has identified, after public notice and comment, that specific geographic areas with rapidly changing environmental conditions merit re-verification on a more frequent basis.⁴ For the purposes of this AJD, we have relied on section 10 of the Rivers and Harbors Act of 1899 (RHA),⁵ the Clean Water Act (CWA) implementing regulations published by the Department of the Army in 1986 and amended in 1993 (references 2.a. and 2.b. respectively), the 2008 *Rapanos-Carabell* guidance (reference 2.c.), and other applicable guidance, relevant case law and longstanding practice, (collectively the pre-2015 regulatory regime), and the *Sackett* decision (reference 2.d.) in evaluating jurisdiction.

This Memorandum for Record (MFR) constitutes the basis of jurisdiction for a Corps AJD as defined in 33 CFR §331.2. The features addressed in this AJD were evaluated consistent with the definition of "waters of the United States" found in the pre-2015 regulatory regime and consistent with the Supreme Court's decision in *Sackett*. This

¹ While the Supreme Court's decision in *Sackett* had no effect on some categories of waters covered under the CWA, and no effect on any waters covered under RHA, all categories are included in this Memorandum for Record for efficiency.

² When documenting aquatic resources within the review area that are jurisdictional under the Clean Water Act (CWA), use an additional MFR and group the aquatic resources on each MFR based on the TNW, interstate water, or territorial seas that they are connected to. Be sure to provide an identifier to indicate when there are multiple MFRs associated with a single AJD request (i.e., number them 1, 2, 3, etc.).

³ 33 CFR 331.2.

⁴ Regulatory Guidance Letter 05-02.

⁵ USACE has authority under both Section 9 and Section 10 of the Rivers and Harbors Act of 1899 but for convenience, in this MFR, jurisdiction under RHA will be referred to as Section 10.

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AJD did not rely on the 2023 “Revised Definition of ‘Waters of the United States,’” as amended on 8 September 2023 (Amended 2023 Rule) because, as of the date of this decision, the Amended 2023 Rule is not applicable Texas due to litigation.

1. SUMMARY OF CONCLUSIONS.

- a. Provide a list of each individual feature within the review area and the jurisdictional status of each one (i.e., identify whether each feature is/is not a water of the United States and/or a navigable water of the United States).
 - i. Wetland 1, 0.98-acre, E2EM, Latitude: 27.82853 N Longitude: 97.06919 W, Section 404 and Section 10.
 - ii. Wetland 2, 0.54-acre, PEM, Latitude: 27.82863 N; Longitude: 97.06891 W, Section 404.

2. REFERENCES.

- a. Final Rule for Regulatory Programs of the Corps of Engineers, 51 FR 41206 (November 13, 1986).
- b. Clean Water Act Regulatory Programs, 58 FR 45008 (August 25, 1993).
- c. U.S. EPA & U.S. Army Corps of Engineers, Clean Water Act Jurisdiction Following the U.S. Supreme Court’s Decision in *Rapanos v. United States & Carabell v. United States* (December 2, 2008)
- d. *Sackett v. EPA*, 598 U.S. 651, 143 S. Ct. 1322 (2023)
- e. 12 March 2025 Memorandum to the Field Between the U.S. Department of Army, U.S. Army Corps of Engineers, and the U.S. Environmental Protection Agency Concerning the Proper Implementation of “Continuous Surface Connection” Under the Definition of “Waters of the United States” Under the Clean Water Act
- f. 2022 December Technical Support Document for the Final “Revised Definition of ‘Waters of the United States’” Rule.

3. REVIEW AREA. The approximate 1.9-acre review area is located at 275 W Avenue G, Port Aransas, Nueces County, Texas. Latitude: 27.828644 N; Longitude: 97.068851 W

4. NEAREST TRADITIONAL NAVIGABLE WATER (TNW), INTERSTATE WATER, OR THE TERRITORIAL SEAS TO WHICH THE AQUATIC RESOURCE IS CONNECTED. Corpus Christi Ship Channel.⁶
5. FLOWPATH FROM THE SUBJECT AQUATIC RESOURCES TO A TNW, INTERSTATE WATER, OR THE TERRITORIAL SEAS. Wetland 1 and Wetland 2 flow south and west through a series of estuarine wetlands that abuts Piper Channel. Piper Channel, a maintained small craft ship channel, directly connects and leads to the Corpus Christi Ship Channel to the northeast.
6. SECTION 10 JURISDICTIONAL WATERS⁷: Describe aquatic resources or other features within the review area determined to be jurisdictional in accordance with Section 10 of the Rivers and Harbors Act of 1899. Include the size of each aquatic resource or other feature within the review area and how it was determined to be jurisdictional in accordance with Section 10.⁸

Wetland 1 (0.98 acre): LiDAR, topo, aerial imagery, site visit photos, and wetland delineation field data forms were utilized as part of the desktop analysis to identify that the mapped feature labelled as Wetland 1 is continuous with estuarine wetlands outside of the review area which abut Piper Channel and the Corpus Christi Ship Channel. Additionally, based on off-site reviews and site visits, the high tide line is within Wetland 1. The Corpus Christi Ship Channel is a waterbody that qualifies as a “navigable water of the United States” (33 C.F.R. Part 329) and is (a) subject to the ebb and flow of the tide, and (b) is presently used, and/or has been used in the past, or may be susceptible for us to transport interstate or foreign commerce. Therefore, Wetland 1 is a water of the United States subject to Section 404 of the Clean Water Act and Section 10 of the Rivers and Harbors Act.

⁶ This MFR should not be used to complete a new stand-alone TNW determination. A stand-alone TNW determination for a water that is not subject to Section 9 or 10 of the Rivers and Harbors Act of 1899 (RHA) is completed independently of a request for an AJD. A stand-alone TNW determination is conducted for a specific segment of river or stream or other type of waterbody, such as a lake, where upstream or downstream limits or lake borders are established.

⁷ 33 CFR 329.9(a) A waterbody which was navigable in its natural or improved state, or which was susceptible of reasonable improvement (as discussed in § 329.8(b) of this part) retains its character as “navigable in law” even though it is not presently used for commerce, or is presently incapable of such use because of changed conditions or the presence of obstructions.

⁸ This MFR is not to be used to make a report of findings to support a determination that the water is a navigable water of the United States. The district must follow the procedures outlined in 33 CFR part 329.14 to make a determination that water is a navigable water of the United States subject to Section 10 of the RHA.

7. SECTION 404 JURISDICTIONAL WATERS: Describe the aquatic resources within the review area that were found to meet the definition of waters of the United States in accordance with the pre-2015 regulatory regime and consistent with the Supreme Court's decision in *Sackett*. List each aquatic resource separately, by name, consistent with the naming convention used in section 1, above. Include a rationale for each aquatic resource, supporting that the aquatic resource meets the relevant category of "waters of the United States" in the pre-2015 regulatory regime. The rationale should also include a written description of, or reference to a map in the administrative record that shows, the lateral limits of jurisdiction for each aquatic resource, including how that limit was determined, and incorporate relevant references used. Include the size of each aquatic resource in acres or linear feet and attach and reference related figures as needed.

- a. TNWs (a)(1): N/A
- b. Interstate Waters (a)(2): N/A
- c. Other Waters (a)(3): N/A
- d. Impoundments (a)(4): N/A
- e. Tributaries (a)(5): N/A
- f. The territorial seas (a)(6): N/A
- g. Adjacent wetlands (a)(7):

Wetland 2 (0.54 acre): LiDAR, topo, aerial imagery, site visit photos, and wetland delineation field data forms were utilized as part of the desktop analysis to identify that the mapped feature labelled as Wetland 2 is continuous with Wetland 1 and estuarine wetlands outside of the review area which abuts Piper Channel and the Corpus Christi Ship Channel. Piper Channel and the Corpus Christi Ship Channel is a waterbody that qualifies as a "navigable water of the United States" (33 C.F.R. Part 329) and is (a) subject to the ebb and flow of the tide, and (b) is presently used, and/or has been used in the past, or may be susceptible for us to transport interstate or foreign commerce. Therefore, Wetland 1 is a water of the United States subject to Section 404 of the Clean Water Act.

8. NON-JURISDICTIONAL AQUATIC RESOURCES AND FEATURES

- a. Describe aquatic resources and other features within the review area identified as "generally non-jurisdictional" in the preamble to the 1986 regulations (referred

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to as “preamble waters”).⁹ Include size of the aquatic resource or feature within the review area and describe how it was determined to be non-jurisdictional under the CWA as a preamble water. N/A

- b. Describe aquatic resources and features within the review area identified as “generally not jurisdictional” in the *Rapanos* guidance. Include size of the aquatic resource or feature within the review area and describe how it was determined to be non-jurisdictional under the CWA based on the criteria listed in the guidance. N/A
 - c. Describe aquatic resources and features identified within the review area as waste treatment systems, including treatment ponds or lagoons designed to meet the requirements of CWA. Include the size of the waste treatment system within the review area and describe how it was determined to be a waste treatment system. N/A
 - d. Describe aquatic resources and features within the review area determined to be prior converted cropland in accordance with the 1993 regulations (reference 2.b.). Include the size of the aquatic resource or feature within the review area and describe how it was determined to be prior converted cropland. N/A
 - e. Describe aquatic resources (i.e. lakes and ponds) within the review area, which do not have a nexus to interstate or foreign commerce, and prior to the January 2001 Supreme Court decision in “*SWANCC*,” would have been jurisdictional based solely on the “Migratory Bird Rule.” Include the size of the aquatic resource or feature, and how it was determined to be an “isolated water” in accordance with *SWANCC*. N/A
 - f. Describe aquatic resources and features within the review area that were determined to be non-jurisdictional because they do not meet one or more categories of waters of the United States under the pre-2015 regulatory regime consistent with the Supreme Court’s decision in *Sackett* (e.g., tributaries that are non-relatively permanent waters; non-tidal wetlands that do not have a continuous surface connection to a jurisdictional water). N/A
9. DATA SOURCES. List sources of data/information used in making determination. Include titles and dates of sources used and ensure that information referenced is available in the administrative record.
- a. Wetland Delineation Report: Lot 2A Block 1A Port Aransas, Nueces County,

⁹ 51 FR 41217, November 13, 1986.

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Texas, prepared by BFS, submitted on 8 October 2025.

- b. Wetland Delineation Report: Lot 2A Block 1A Port Aransas, Nueces County, Texas, prepared by BFS, submitted on 17 February 2026.
- c. ORM2 Database.
- d. Site visit conducted on 5 November 2025.
- e. Antecedent Precipitation Tool (APT) and Historical Aerials: 1956, 1979, 1985, 1990, 1995, 2003, 2005, 2006, 2008, 2009, 2011, 2012, 2014, 2016, 2017, 2019, 2020, 2022, 2023, 2025.
- f. USGS Topographic Map/Scale: Corpus Christi, TX 1950 1:250,000; Port Aransas, TX 1954 1:24,000; Corpus Christi, TX 1956 1:25,000; Corpus Christi, TX 1966 1:25,000; Port Aransas, TX 1968 1:24,000; Port Aransas, TX 1975 1:24,000; Corpus Christi, TX 1989 1:25,000; Port Aransas, TX 2010 1:24,000; Port Aransas, TX 2013 1:24,000; Port Aransas, TX 2016 1:24,000; Port Aransas, TX 2019 1:24,000; Port Aransas, TX 2022 1:24,000; Port Aransas, TX 2025 1:24,000
- g. NRCS Soil Survey titled Nueces County, Texas; NRCS Website accessed on 19 May 2026 and 28 May 2026.
- h. US Fish and Wildlife Service (FWS) National Wetland Inventory (NWI): Web Mapper dated 19 May 2026.
- i. NOAA LiDAR mapper accessed 28 April 2026.

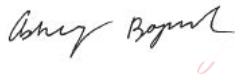
10. OTHER SUPPORTING INFORMATION. N/A

11. NOTE: The structure and format of this MFR were developed in coordination with the EPA and Department of the Army. The MFR's structure and format may be subject to future modification or may be rescinded as needed to implement additional guidance from the agencies; however, the approved jurisdictional determination described herein is a final agency action.

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PREPARED BY:



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29 May 2026

Date: _____

Ashley Bogrand
Regulatory Project Manager, South Branch
Regulatory Division, Galveston District

REVIEWED/APPROVED BY:



29 May 2026

Date: _____

Kara Vick Clark
Team Lead, South Branch
Regulatory Division, Galveston District



Study Area

Legend

Study Area

Datum: NAD83 State Plane Texas South 4205
Base Map: World Imagery (ESRI)

STUDY AREA LOCATION

Source: Earthstar Geographics, Sources: Esri, TomTom, Garmin, FAO, NOAA, USGS, (c) OpenStreetMap contributors, and the GIS User Community

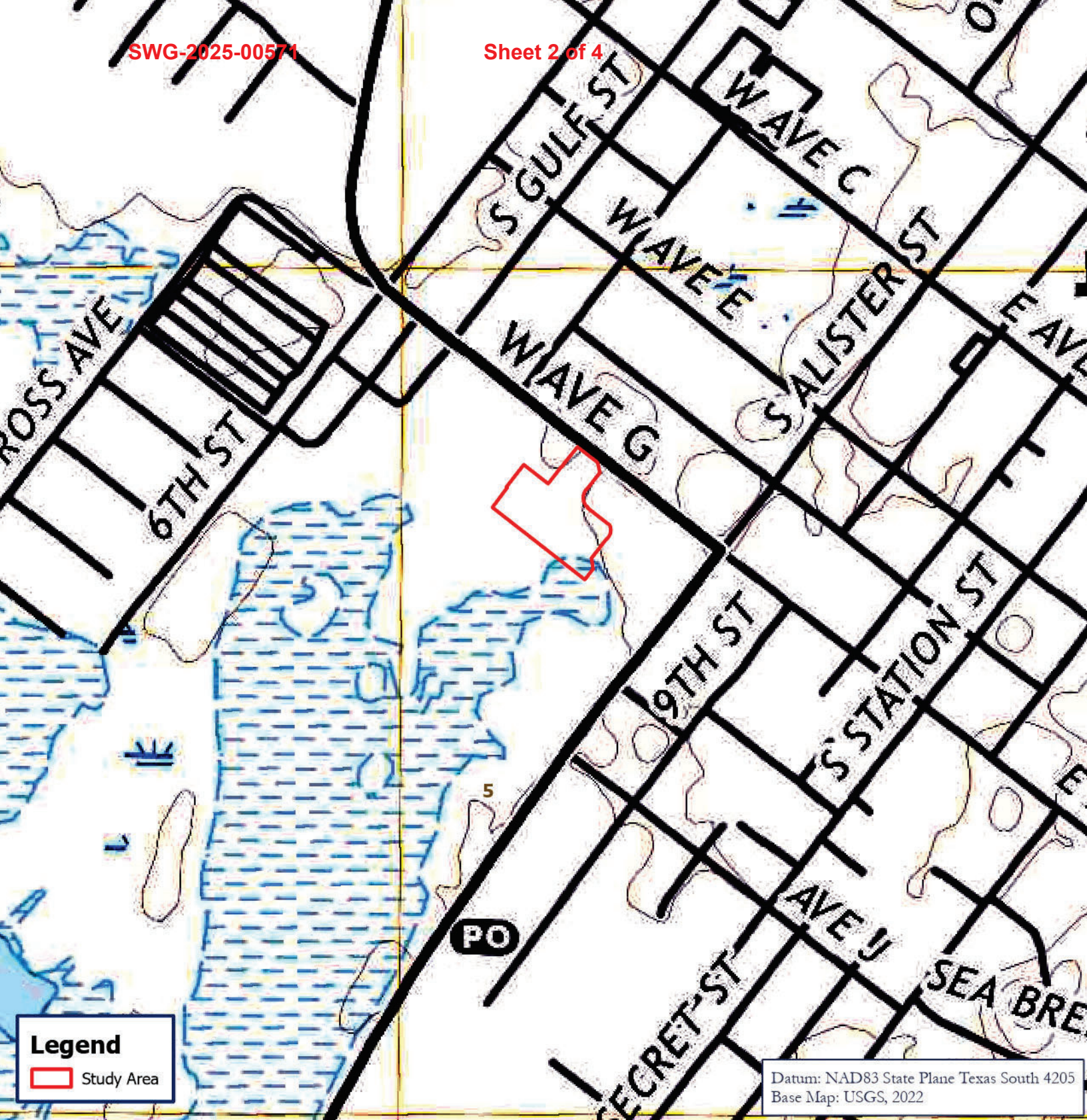


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APPENDIX 1 - FIGURE 1
JP DEVELOPMENT - LOT 2A BLOCK 1A
NUECES COUNTY, TEXAS



10201 S PADRE ISLAND DR., STE 210
CORPUS CHRISTI, TX 78418



2022 TOPOGRAPHIC MAP

Source: Esri, NASA, NGA, USGS, Sources: Esri, TomTom, Garmin, FAO, NOAA, USGS, (c) OpenStreetMap contributors, and the GIS User Community, Copyright © 2013 National Geographic Society, i-cubed



APPENDIX 1 - FIGURE 3-2
 JP DEVELOPMENT - LOT 2A BLOCK 1A
 NUECES COUNTY, TEXAS

BFS
 10201 S PADRE ISLAND DR., STE 210
 CORPUS CHRISTI, TX 78418

Port A Beach
Buggies

W Avenue C

W Avenue

Island Tackle

CVS P

Legend

Study Area

ELEVATION

- 2
- 2.5
- 3
- 3.5
- 4
- 4.5
- 5
- 5.5
- 6
- 6.5
- 7
- 7.5
- 8
- 8.5

Datum: NAD83 State Plane Texas South 4205
Base Map: World Imagery (Maxar, 2025)
LiDAR collected by BFS on February 19, 2025
with a DJI Zenmuse L2 sensor and
post-processed with DJI Terra and Global Mapper.

LiDAR CONTOURS MAP

Source: Microsoft, Vantor, Sources: Esri, TomTom, Garmin, FAO, NOAA, USGS, (c) OpenStreetMap contributors, and the GIS User Community



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APPENDIX 1 - FIGURE 4
JP DEVELOPMENT - LOT 2A BLOCK 1A
NUECES COUNTY, TEXAS

BFS

10201 S PADRE ISLAND DR., STE 210
CORPUS CHRISTI, TX 78418

Port A Beach
Buggies

W Avenue G

W Avenue G

27.82853,
-97.06919
Wetland 1

Island Tackle

27.82863,
-97.06891
Wetland 2

CVS Pharma

Legend

High Tide Line

Study Area

Water Features

Wetland 1 - E2EM (0.98 acre)

Wetland 2 - PEM (0.54 acre)

Datum: NAD83 State Plane Texas South 4205
Base Map: World Imagery (Maxar, 2025)

WATER FEATURES MAP

Source: Microsoft, Vantor, Sources: Esri, TomTom, Garmin, FAO, NOAA, USGS, (c) OpenStreetMap contributors, and the GIS User Community



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Ft

JP DEVELOPMENT - LOT 2A BLOCK 1A
NUECES COUNTY, TEXAS

BFS

10201 S PADRE ISLAND DR., STE 210
CORPUS CHRISTI, TX 78418